Judicial Practices and Procedures

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Table of Contents

A. Communications with the Judicial Office 1
B. Scheduling Procedures 2
C. Remote Appearance 5
D. Submission of Orders and Judgments 5
E. Courtesy Copies of Case Law and Other Documents 6
F. Emergency and Other Urgent Matters 7
G. Exhibits for Evidentiary Hearing Proceedings 7
H. Pretrial Procedures, Conferences, and Motion Practice 7
I. Setting Case for Trial (Civil and Domestic Relations) 9
K. Other Division Procedures 12
L. Probate 13
M. Guardianship/Incapacity Proceedings 13
N. Foreclosure 14
O. Information Not Covered 16

A. Communications with the Judicial Office

- **Method of Communication:** All communications to the judicial office must be submitted by e-mail to OCJudge1@Circuit19.org. The subject line must contain the case number, case name, and relevant matter (e.g., 2024 DR 001234 SC – Doe v. Doe - 2-Hour Hearing Requested.)

- **Ex Parte Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending

proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law

- **Unsolicited Communications:** Unsolicited communications from non-parties will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:** The judicial assistant is not authorized to provide legal advice. The judicial assistant will make every effort to timely respond to all communications received.

- **Submission Procedures:** This is a paperless office. Documents shall be submitted to this office by email and should be attached as a document with a name that is easily identifiable and searchable. As an example: Jones v. Jones, 21CA234 O-Set Hrg. Motions must be submitted in .pdf format. All proposed orders must be submitted in WORD format. Please submit all documents attached to one (1) email to the Judicial Assistant at OCJudge1@Circuit19.org. The email address for submitting FORECLOSURE documents is: ForeclosureOC@Circuit19.org. The email address for submitting PROBATE documents is: Probate@Circuit19.org.

B. Scheduling Procedures

- All motions must be filed with the Clerk before you set the motion for hearing using the online scheduling system or contact this office for hearing time.

- **Civil Conferral Prior to Filing Motions:** Before filing a non-dispositive motion, the movant must confer with the opposing party in a good-faith effort to resolve the issues raised in the motion. At the end of the motion and above the signature block, the movant must include a certificate of conferral in substantially the following form: "I certify that prior to filing this motion, I discussed the relief requested in this motion by [method of communication and date] with the opposing party and [the opposing party (agrees or disagrees) on the resolution of all or part of the motion] OR [the opposing party did not respond (describing with particularity all of the efforts undertaken to accomplish dialogue with the opposing party prior to filing the motion)]."

  OR

  "I certify that conferral prior to filing is not required under rule 1.202."

  If you are scheduling a hearing on objections, the good faith conferral must be listed in the Notice of Hearing.

Failure to include this certification will result in the motion and/or hearing being stricken from the docket.

- **Domestic Relations/ Probate/ Dependency Conferral prior to filing motions:** Before filing a motion, the movant must confer with the opposing party in a good-faith effort to resolve the issues raised in the motion. At the end of the motion and above the signature block, the movant must include a certificate of conferral in substantially the following form: "I certify that prior to filing this motion, I discussed the relief requested in this motion by [method of communication and date] with the opposing party and [the opposing party (agrees or disagrees) on the resolution of all or part of the motion] OR [the opposing party did not respond (describing with particularity all of the efforts undertaken to accomplish dialogue with the opposing party prior to filing the motion)]."

  Failure to include this certification will result in the motion and/or hearing being stricken from the docket.

- **Coordinating Hearings and Unilaterally Setting Hearings:** The moving party is responsible for contacting the opposing party to coordinate the hearing date. If after three (3) business days you are unable to coordinate the hearing date, you may unilaterally schedule the hearing setting forth in your good faith certificate the attempts that were made to coordinate the hearing. **Failure to include this certification will result in the hearing being stricken from the docket.**

- **Uniform Motion Calendar (UMC) Hearings via Zoom:** UMC's are non-evidentiary (no witnesses/exhibits) except for uncontested final hearings (DR) and will be limited to 10 minutes per case, not per motion. This means that each side will have five (5) minutes to argue their position. Additional motions may not be "piggy-backed" by cross-notice without permission from the Judicial Assistant.

- **Scheduling Hearings of less than 1-hour:** Attorneys and pro se parties may schedule hearings using the online scheduling system: https://slccjis.stlucieco.gov/attorney_calendar/. You must first register to obtain your user ID and password on the site. Please note that additional motions may not be "piggy-backed" by cross-notice without permission from the Judicial Assistant.

- **Scheduling Hearings of more than 1-hour:** Any hearings that require more than one hour must be requested by email to OCJudge1@Circuit19.org in writing with an explanation as to why more than one hour is needed and that attempts to resolve the issue have failed. You must also indicate whether opposing counsel agrees with the estimated time requested for hearing. A copy of the filed motion/petition MUST be attached.

- **Hearing time will be strictly enforced by the Court.** Any motion that is not concluded by the expiration of the requested hearing time will be suspended and must be rescheduled. Only one reset will be permitted per motion. Accordingly, all counsel are advised to be succinct, organized, and to the point in the presentation of, or objection to, any motion.

- **Notice of Hearing:** A notice of hearing must be filed and served immediately after reserving hearing time. A notice of hearing involving any remote appearance must list the judicial Zoom credentials. All notices of hearing must contain the ADA notification required by Florida Rule of General Practice and Judicial Administration 2.540. All Notices of Hearing must contain a good faith certification in substantial compliance with the following:

  I HEREBY CERTIFY that the hearing date has been coordinated with opposing counsel/party and the length of time has been agreed upon.

  If you were unsuccessful in your attempts to contact opposing counsel/party, please specify what attempts were made prior to unilaterally scheduling.

  Failure to include this certification will result in the matter being stricken from the docket.

- **Submission Deadlines:** The Court must receive a copy of the motion, notice of hearing, (and a proposed order if UMC hearing) within five (5) days of scheduling the hearing by email at OCJudge1@Circuit19.org. All proposed orders must be submitted in WORD format. Failure to timely provide a copy of the notice, motion, (and proposed order if UMC hearing), to the Court will result in the matter being stricken from the docket. If your case is stricken from a docket, it will not be rescheduled on that same date.

- **Continuance Procedure:** Continuances are disfavored and will be granted only upon good cause shown. A request for continuance must be submitted at least five days prior to the scheduled court date. Except for good cause shown, the motion must be signed by the party requesting the continuance, as required by Florida Rule of General Practice and Judicial Administration 2.545(e). Click or tap here to enter text.

- **Cancelling Hearings:** If you cancel your hearing, you must file a Notice of Cancellation and advise the Judicial Assistant by email no later than noon, the day before the hearing, with a copy to all parties, so that it may be removed from the Court's docket. **It is the responsibility of the moving party to remove any hearing from the Court's online scheduling system.** Simply filing a Notice of Cancellation does not remove the hearing from the Court's docket. Attorneys who repeatedly abuse the online scheduling system by not removing hearings from the online calendar may be denied the privilege of self-scheduling.

- **Shelter Petitions/Hearings**: Shelter hearings are normally conducted on Mondays through Thursdays at 1:15 p.m., and at 9:00 a.m. on Friday, unless otherwise indicated/notified. If a change in the shelter hearing time/courtroom is necessary, you will be notified by e-mail. All shelter petitions are to be e-mailed directly to Judge Buchanan with a copy to her Judicial Assistant, no later than 10:00 a.m. or as soon as possible thereafter, on Monday, through Thursdays, when shelter hearings are typically conducted at 1:15 p.m., and no later than 8:00 a.m. or as soon as possible thereafter, on Fridays, when shelter hearings are typically conducted at 9:00 a.m.

- **Requirements for Court Reporters**: All evidentiary matters (both trials and hearings) must be reported by a court reporter. Counsel for the Petitioner is responsible for having a court reporter present. If counsel for the Petitioner does not plan on asking to have the proceedings reported, then he/she MUST timely notify the opposing party so that they may obtain a reporter, should they wish to do so. Failure to do so may be grounds for cancellation of the trial and may be grounds for sanctions.

C. Remote Appearance

- **Remote Appearance Procedure:** The court maintains a hybrid virtual courtroom, allowing parties to appear either in person or remotely, as provided by Florida Rule of General Practice and Judicial Administration 2.530. However, ALL EVIDENTIARY HEARINGS WILL BE CONDUCTED IN PERSON, unless otherwise permitted by the Court prior to the hearing. A Non-Evidentiary hearing may be noticed as a virtual or in person hearing. The Notice of Hearing MUST indicate the type of appearance (i.e. In Person or Remote).

- **Platform Used:** The court uses Zoom for remote appearances.

- **Platform Meeting ID#:** 516-390-0212. There is no password requirement.

- **Testifying Participants:** All testifying participants MUST appear by Zoom VIDEO; unless they have a Notary Public with them to administer an oath. Each party is responsible for having their witnesses in the Zoom Virtual Waiting Room at the scheduled time, where they will remain until admitted by the Court to give testimony. Witnesses who do not appear on camera; and are not present with a Notary Public will not be permitted to testify. At the time of the hearing, all participants must be in a quiet place, without interruption from children, pets or other noises or distractions.

- **Uncontested Dissolution of Marriage Final Hearing:** You must file with the Clerk of Court a copy of your Florida driver's license, Florida ID card, voter's registration or Affidavit of Corroborating Witness. To change your name to a former or maiden name, you will need to appear remotely or provide an affidavit of name change.

- **Technology Needs:** To request use of the Mobile Presentation Station please visit: https://www.circuit19.org/mobile-station-request/.

D. Submission of Orders and Judgments

- **Format:** All proposed orders must be submitted in Word format. All proposed orders must be accompanied by a cover letter either (1) certifying that all parties agree to the order or (2) containing a statement identifying any disagreement of the parties as to the proposed order. All proposed orders and motions MUST contain proper address certification—i.e. the FULL address or email address where the motion was served (or order will be served.) "I certify that a copy of the foregoing was emailed to all parties through the e-service portal" is NOT sufficient. Likewise, listing a party on the order "cc:" without listing the

address is insufficient. The order will reflect that counsel will be required to mail copies of any orders that require US mail.

- **Submission Method:** All proposed order shall be submitted by email to the Judicial Assistant at OCJudge1@Circuit19.org. The email address for submitting FORECLOSURE documents is: ForeclosureOC@Circuit19.org. The email address for submitting PROBATE documents is: Probate@Circuit19.org.

- **Deadline for Submissions:** If counsel is asked to prepare an order, the order shall be drafted and circulated to opposing counsel or pro se party within two (2) business days of the hearing and must be submitted to the Court in Word format and to all counsel and pro se parties within seven (7) days of the hearing, unless otherwise ordered at the hearing.

- **Agreed Orders:** If you have reached an agreement/stipulation, a separate agreed order in WORD must be provided to the Court with language approving the agreement/stipulation. If you have exhibits to include in the agreed order, you must also submit the agreed order in .pdf format and include all necessary attachments. The Court will not execute proposed orders, agreed orders, or stipulations without a written verification or cover letter stating the action requested, that a copy was provided to all counsel of record and pro se parties, and if there is a stipulation or an agreed order, that there are no objections to the entry of the order. Do not state in a cover letter words to the effect: "No objection was received" OR "By copy of this cover letter to opposing counsel, opposing counsel is requested to advise the Court if there is an objection to the proposed order." Instead, advise the Court if there is an objection to the proposed order.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** Any legal memoranda or briefs for special set hearings, along with copies of significant cited authorities (highlighting the pertinent sections is appreciated by the Court), should be provided to the Court and opposing counsel at least three (3) business days prior the hearing. A list of any witnesses to be called and any responsive memoranda should be provided to the Court and to opposing counsel at least three (3) business days prior to the hearing. The Court will attempt to review the motion and memorandum, and read the cases cited therein, prior to the hearing so that an immediate ruling may be rendered. BREVITY IS APPRECIATED AND ENCOURAGED, and memorandums should be kept to no more than five (5) pages in length. Case law and Memorandums provided to the Court during the hearing may not be considered. **The Court, on occasion, may rule on motions without a hearing. Therefore, both counsel filing the motion and opposing parties are encouraged to timely file written argument with the Court.**

- **Submission Method:** All submissions should be emailed to OCJudge1@Circuit19.org.

- **Deadline for Submissions:** Courtesy copies must be emailed to the court no later than three(3) days prior to any evidentiary proceeding.

F. Emergency and Other Urgent Matters

- **Requirements:** If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed: (1) the issues to be resolved, (2) reasons why an emergency hearing is necessary, and (3) the amount of time needed for each party's presentation. The filing party must submit the motion to the Court by email at OCJudge1@Circuit19.org. If you are requesting an Emergency Hearing, you MUST indicate in the subject line "Request for EMERGENCY Hearing."

- **Scheduling:** If the Court determines that an emergency exists, a hearing will be scheduled unilaterally by the Court. All parties shall make themselves available for the emergency hearing, barring exigent circumstances.

G. Exhibits for Evidentiary Hearing Proceedings

- **Submission:** Parties are to file an exhibit list with the Clerk prior to hearing. This must be done at least three (3) business days (72 hours) prior to the day of special set hearing. A completed exhibit list and all exhibits must be delivered or scanned and emailed to the Clerk and all parties at evidence@myokeeclerk.com, you will receive an auto-reply that someone will contact you for pre-payment for printing. Parties should bring a minimum of four (4) copies of all exhibits with them to court (original to Clerk, copy for each party, copy for the witness, and copy for the Court).

H. Pretrial Procedures, Conferences, and Motion Practice

- **Case Management Conference/Status Conference:** Any party may request or schedule a case management conference (CMC) or status hearing when a case requires. The Court strongly encourages the early use of CMC in more complex cases, multiple-party litigation, or any case that might benefit from court intervention. Unless excused by the Court in advance, all CMCs are mandatory for attorneys and self-represented litigants. Parties represented by counsel are not required to appear at a CMC. Any request for a CMC or status hearing must articulate the reasons for the necessity of the conference.

- **Motion to Dismiss and/or Motion for More Definite Statement:** The Court will initially consider all Motions to Dismiss filed pursuant to Rule 1.140(b) and Motions for More Definite Statement filed pursuant to Rule 1.140(e), **without** hearing. Motions to Dismiss must strictly comply with the requirements of the Rule in that the grounds on which they are based and the substantial matters of law intended to be argued shall be stated specifically and with particularity. Motions for More Definite Statement must strictly comply with the requirements of the Rule in that the motion must point out the defects complained of and the details desired. A copy of the motion and proposed order(s) shall be submitted to the Court by email at OCJudge1@Circuit19.org.

- **Discovery Motions and Motions to Compel**: Motions to Compel, as well as all discovery motions must comply with the Florida Rules of Civil Procedure, including, but not limited to, a **certification that the movant, in good faith, has conferred or attempted to confer**

with the person or party failing to make discovery in an effort to secure the information without court action. *See,* Fla.R.Civ.P. 1.380(a)(2).

When a motion to compel discovery alleges a complete failure to respond or object to discovery, and the time for complying with the discovery request has lapsed and there has been no request for an extension of time, an ex parte order may be entered requiring compliance with the original discovery demand. The movant shall submit a copy of the motion and proposed order(s) to the Court by email at OCJudge1@Circuit19.org.

- **Motions for Protective Orders:** The filing of a Motion for Protective Order, without presenting it before the Court, is insufficient. The Court will make itself available for expedited hearings on said motions where the motion could *not* have been filed and heard in the due course of discovery.

- **Motions for Rehearing, Reconsideration, or New Trial:** Upon filing said motion the moving party shall submit a copy to the Court for review by email at OCJudge1@Circuit19.org. The copy of the motion sent to the Judge shall be accompanied by a generic order in WORD granting/denying the motion, with at least five lines for additional provisions, a transmittal letter showing copies to all counsel and *Pro Se* parties. If the moving party fails to comply, any party may furnish a copy of the motion and the required documents to the Court. If the Court determines that a hearing is necessary, the movant will be advised to schedule a hearing and file appropriate notices. **Please do not set a Motion for Rehearing or Motion for Reconsideration for hearing without first receiving permission from the Court.**

- **Motions to Withdrawal or Substitution of Counsel:** You must follow the provisions of Fla.R.Jud.Ad. 2.505. You must obtain the client's consent in writing which shall be filed with the Court, or a hearing must be held after proper notice to the client.

- **Motions for Extension of Time:** When a motion for extension of time is filed, and there is no opposition for the extension, an order may be entered without a hearing, so long as the motion details the grounds for "good cause." The movant shall submit the proposed order in WORD format, and in a cover letter or email shall certify that that opposing counsel or unrepresented party has been contacted and agreed to the order or waived a hearing thereon.

- **Temporary Relief hearings:** Pursuant to Administrative Order, parties **must attend mediation** before a Temporary Relief Hearing may be set. If you schedule a Temporary Relief Hearing without first having been to mediation your motion **will not** be heard and your hearing will be stricken.

- **Domestic Relations POST JUDGMENT matters:** Any post-judgment matter not following these procedures will be considered stricken from the Court's Docket without further notice or order.

  All Post Judgment cases must be referred to the Magistrate. Please provide a proposed Order of Referral to Magistrate to the Court by email at OCJudge1@Circuit19.org, along

with a copy of the Motion and/or Petition. A copy of any filed Objection to the Magistrate should be emailed to OCJudge1@Circuit19.org. Should there be an Objection filed, the case then would be heard before the Judge. Should no Objection be filed, the case would then remain with the Magistrate and any hearing dates and/or questions would be handled by the Magistrate's Assistant.

I. Setting Case for Trial (Civil and Domestic Relations)

Civil Case Management Plan and Trial Orders/Procedures

- **Procedure:** All Civil trials are scheduled by the Case Management Plan and Trial Order. THIS WILL BE YOUR TRIAL ORDER. Non-Jury Trial cases will also be scheduled for a docket call within your Case Management Plan and Trial Order. Uncontested foreclosure non-jury trial cases may be set separately. See below for further procedures. A list of protentional trial dates can be found on this Court's webpage under Calendars. Jury trials are generally scheduled on the first full week of the month, and non-jury trials are generally scheduled on the third week of the month.

- **Pre-Trial Compliance:** The Court requires full compliance with the Case Management Plan and Order, which includes, without limitation, timely submission of a joint pre-trial statement. Your case will be subject to sanctions and/or removal from the trial docket if a joint pre-trial statement is not filed in compliance with the pre-trial order. Motions in limine and other motions concerning how the trial is to be conducted will not be entertained during trial or on the day of jury selection, unless the Court is satisfied that with due diligence, the matter could not have been heard pre-trial.

- **Settlement of Cases:** If your case settles prior to trial, please immediately email a copy of the Notice of Settlement to the Court at OCJudge1@Circuit19.org.

- **Trial Procedures**: Counsel and their clients are to be in the courtroom and ready for trial in a timely manner. Depending on other emergency matters, the Court will start as soon after the scheduled start time as possible.

- **Trial Notebook:** Counsel shall present to the Court, five (5) business days prior to trial, a trial notebook containing copies of pertinent pleadings filed in the case (i.e., Complaint, Answer and Affirmative Defenses, Counter-Claims, Pre-Trial Stipulation, etc.). ***Electronic copies are strongly encouraged***.

- **Jury Selection Process:** After voir dire, the Court will first ask each side for any cause challenges. Upon completion of challenges for cause, the Court will move to peremptory challenges. The Court will start with the first juror and move sequentially as they are seated in the venire, alternating between counsel until a panel is chosen. Back striking during jury selection is always permitted. The number of alternates will be determined by the type and length of the trial. Each party will have one additional strike as to each alternate.

- **Opening and Closing:** Only demonstrative aids or exhibits marked by the Clerk, agreed to by all counsel, or approved by the Court may be used in either opening or closing. The

Court will discuss with counsel the time requirement of both opening and closing and will expect that a reasonable estimate be provided by counsel. Please note that opening statements will begin immediately after a jury is selected and sworn unless otherwise ordered by the Court.

- **Exhibits:** If counsel has questions regarding submitting exhibits to the Court, please contact the Clerk of Court/Civil Division. All exhibits are to be marked for identification by the clerk five (5) business prior to the start of trial. A completed exhibit list and all exhibits must be delivered or scanned and emailed to the Clerk and all parties at evidence@myokeeclerk.com, you will receive an auto-reply that someone will contact you for pre-payment for printing. Parties should bring a minimum of four (4) copies of all exhibits with them to trial (original to clerk, copy for each party, copy for the witness, and copy for Court). Exhibits shall be organized in a binder. Exhibits which will be stipulated into evidence may be marked in evidence. Once exhibits are marked, either for identification or in evidence, they become the property of the Clerk of Court and may not be altered or removed from the courtroom without order of the Court. No exhibits are to be published or exhibited to the jury until admitted into evidence and authorized by the Court. Objections to exhibits not preserved in the pre-trial stipulation shall be deemed waived.

- **Demonstrative Aids:** Any demonstrative aide that is to be used at trial must be marked by the clerk and exhibited to opposing counsel and the Court prior to the start of trial. The Court will hear argument of any counsel opposing the use of the demonstrative aids prior to the start of trial. No aids are to be shown to the jury without prior approval of the Court.

- **Experts:** The Court will not accept or qualify a witness as an expert in front of the jury. Challenges to an expert's qualifications will be handled outside the presence of the jury. Experts are to be cautioned by the attorney who calls the expert of "in limine" rulings, and the effect of the invocation of the Rule of Sequestration.

- **Use of Depositions:** If depositions are to be used at trial in any manner (impeachment, as video testimony, etc.) make certain a hard copy is available for both the Court and for the witness being questioned.

- **Objections:** The Court will not allow speaking objections in front of the jury. When counsel rises to object, only the legal basis for the objection should be stated. If elaboration is necessary, the Court will call counsel to the bench for a bench conference out of the presence of the jury. Counsel shall not interrupt opposing counsel or witness's questions or answers with an objection unless the answer or question is patently objectionable. Once the Court has ruled, no further argument shall be permitted.

- **Jurors:** The Court generally will allow jurors to take notes and to ask questions where necessary. *See* Section 40.50, Florida Statutes. If any counsel objects to these procedures such objection should be addressed to the Court prior to the day of trial.

- **Jury Instructions:** Jury instructions are to be prepared by both sides and exchanged prior to the pre-trial meeting pursuant to the Case Management Plan and Order Setting Trial. **A**

final draft in Word format shall be provided to the Court by e-mail at OCJudge1@Circuit19.org, no later than noon on the Monday prior to the start of the trial. The Court intends to provide the jury with a written copy of all jury instructions when the jury retires to deliberate. Therefore, there should be enough copies of the final instructions for each juror and the Court, counsel and the court reporter. In addition, the final instructions (the instructions that go back with the jury for deliberations) should not contain any citations, jury instruction titles, or information as to who requested the instruction. In certain cases, and with the agreement of all counsel, the Court may provide some substantive law instructions to the jury during preliminary instructions and/or before closing arguments.

- **Sanctions:** Failure to appear for trial or comply with procedures will be grounds for sanctions being imposed, including, but not limited to attorney's fees, costs, striking of pleadings, default or dismissal.

- **Uncontested Foreclosure Non-Jury Trial**: Uncontested foreclosure non-jury trials may be scheduled in advance of the trial date listed in your Case Management Plan and Order. These may be scheduled using the Court's online scheduling system on either a UMC or special set hearing date as time permits. If the case is scheduled for a virtual hearing, all exhibits shall be filed with the Clerk of Court at least three (3) business days prior to the hearing. The proposed final judgment and notice of hearing should be submitted to the Court by email at ForeclosureOC@Circuit19.org and OCJudge1@Circuit19.org within five (5) days of scheduling the hearing.

Domestic Relations Trial Procedures

- **Notices for Trial:** You must submit a copy of your e-filed Notice for Trial to the Court by email to OCJudge1@circuit19.org. Your notice for trial must contain a good faith estimate of time required for trial (coordinate with the opposing party). After receipt of the notice for trial you will receive an order setting pretrial/case management conference. ALL PARTIES AND COUNSEL ARE REQUIRED TO BE PRESENT AT THE CASE MANAGEMENT CONFERENCE. Parties and counsel MAY appear via Zoom.

  Counsel and their clients are to be in the courtroom and ready for trial in a timely manner. Depending on other emergency matters, the Court will start as soon after the scheduled start time as possible.

- **Sanctions:** Failure to appear for trial will be grounds for sanctions being imposed, including, but not limited to attorney's fees, costs, striking of pleadings, default or dismissal.

- **Case Dispositions:** If at any time after the entry of an order, a case is dismissed, or results in a completed settlement, Counsel must immediately notify this Court's Judicial Assistant to remove the case from the trial docket by email at OCJudge1@Circuit19.org. Counsel must expeditiously file all paperwork necessary to close the case.

- **Proposed Orders:** Proposed Parenting Plans, if applicable, must be filed with the Clerk of Court and a copy to the Court in WORD format at least 48 hours prior to the hearing. Final Judgments must be submitted to the Court in WORD format 48 hours prior to the trial, unless this requirement is modified by the Court. All Proposed Parenting Plans, Final Judgments and Orders must be emailed to OCJudge1@Circuit19.org, pursuant to the Court's procedures.

- **Exhibits:** If counsel has questions regarding submitting exhibits to the Court, please contact the Clerk of Court/Family Division. All exhibits are to be marked for identification by the clerk five (5) business prior to the start of trial. A completed exhibit list and all exhibits must be delivered or scanned and emailed to the Clerk and all parties at evidence@myokeeclerk.com, you will receive an auto-reply that someone will contact you for pre-payment for printing. Parties should bring a minimum of four (4) copies of all exhibits with them to trial (original to clerk, copy for each party, copy for the witness, and copy for Court). Exhibits shall be organized in a binder. Exhibits which will be stipulated into evidence may be marked in evidence. Once exhibits are marked, either for identification or in evidence, they become the property of the Clerk of Court and may not be altered or removed from the courtroom without order of the Court. No exhibits are to be published or exhibited to the jury until admitted into evidence and authorized by the Court. Objections to exhibits not preserved in the pre-trial stipulation shall be deemed waived.

J. Forms

- **Access:** Divisional forms are available on this Court's webpage under Forms.

K. Other Division Procedures

- **ADA Accommodations:** If you need an ADA accommodation, please visit https://www.circuit19.org/americans-with-disabilities-act-ada/ for more information.

- **Interpreter Requests:** If an interpreter is needed for a hearing or trial where a fundamental interest is at stake, please visit https://www.circuit19.org/court-interpreters/ for more information.

- **Notice to Persons without lawyers:** The Code of Judicial Conduct governing behavior by judges forbids judges from discussing court cases or legal issues with the parties and their lawyers out of court. The judge is only allowed to consider arguments made in the courtroom and in documents properly filed by parties in the case as authorized by law and the rules of court. The judge cannot respond to letters seeking a judicial ruling in favor of a party. Please do not call or write expecting to communicate with Judge Buchanan about any case.

  If you want to make a request for some judicial action, you must file a motion with the Clerk of Court and send a copy to all attorneys and all unrepresented parties in the case. You must contact the judicial assistant for a hearing date. Pursuant to the local rules,

the judicial assistant may direct you to send a copy of the motion to her.

- **Domestic Relations Self-Represented Litigants**: Please visit https://www.circuit19.org/family-division/ for additional information.

L. Probate

- **Submissions**: All Probate questions and submissions shall be directed to the case manager at Probate@Circuit19.org, with the exception of hearing documents, those shall be submitted to the Court's Judicial Assistant by email to OCJudge1@Circuit19.org.

- **Checklists**: Checklists are required for both Opening and Closing Estates. Checklists are available on this Court's webpage under Forms.

- Attorneys must verify completion and correctness of the Checklists by personal signature. No signature stamps are allowed. Once the checklist is complete, the attorney's office shall submit via email only to Probate@circuit19.org:
    - Completed checklist
    - Proposed Order(s) in Word format; and
    - A description of the documents being provided, as well as the action you wish to be taken.
- **Original documents and monies are not to be sent to the Judge's office, and the Judge's office takes no responsibility for such items**.

- **Trials:** If a probate matter needs to be set for trial, a notice for trial shall be e-filed and a copy shall be submitted to the Court by email at OCJudge1@Circuit19.org. The matter will be scheduled for a case management conference once the Notice of Trial is received by the Court.

M. Guardianship/Incapacity Proceedings

- You MUST submit the following in WORD format via e-mail to: OCJudge1@Circuit19.org within 5 days of filing your petition:
    - Notice of Petition to Determine Incapacity with the Hearing date filled in, if possible (refer to and schedule using the online scheduling system);
    - Application to Determine Indigency Status (In order for the Court to determine who shall be appointed to represent the AIP, an Application to Determine Indigency Status MUST be submitted to the Clerk of Court at the time of filing;
    - Order Appointing Attorney/Elisor; and
    - Order Appointing Examining Committee. If there is information on the proposed orders that can be filled in by your office, please do so before submitting to the Court, including case number and e-mail service addresses. Do not include Certificate of Service by the Clerk.

If a hearing date for the Petition to Determine Incapacity has not been set at the time of

submitting the documents referenced above, the Court will select a date of his own choosing approximately 28 days out from the date the orders are entered.

If you have a pending Guardianship or Mental Health case that needs to be set for hearing and there is no time available on the online scheduling calendar, please email the Judicial Assistant at OCJudge1@Circuit19.org with the details of your request, including a copy of the petition/motion and the total time needed for hearing.

- Examining Committee Fees: Pursuant to Administrative Order 2017-06 in RE: Order for Compensation of Examining Committee, this office will only accept the Order for Compensation of Examining Committee available on www.circuit19.org. This Order must be sent within five (5) days after the hearing for incapacity is held.

- Payment of Examining Committee Fees where the Ward has been found indigent: These fees are preset and must be as follows:
    - Physicians: $350.00
    - Psychologists: $250.00
    - Lay People: $125.00

- Guardian Education Requirements: Pursuant to Administrative Order 2024-01, the 8-hour and 4-hour guardianship education courses available on the Florida State Guardianship Association's website at https://www.floridaguardians.com are approved guardian education courses for non-professional guardians appointed in the Nineteenth Judicial Circuit. Any person appointed by the court as a guardian, must file proof of course completion with the Clerk of Court, with a copy to Court Administration, within four months of appointment.

N. Foreclosure

- **Foreclosure Motion to Cancel/Reschedule Sale**: All motions to cancel must provide the reason for cancellation as well as a proposed order. The proposed order must be submitted in Word format. A sale may be cancelled ex parte by providing evidence of modification or short sale, bankruptcy or with the consent of all parties. Sales that have been cancelled on more than one occasion will not be rescheduled without a hearing unless good cause is shown. Failure to publish, pay sale fees or mitigation after Final Judgment are not good cause and will require a hearing accompanied with the consent or acknowledgement of the Plaintiff to reset the sale and that all loss mitigation efforts have been exhausted, along with the sale fee, new sale package and acknowledgment by the supervising attorney that proper procedures will be followed. The motion and proposed order must be emailed to the Court at both OCJudge1@Circuit19.org and ForeclosureOC@Circuit19.org.

- **Foreclosure Motion for Summary Judgment and Motion for Default Final Judgment**: Compliance with Amended AO 2025-03 and Exhibit A - Final Judgment is required. PACKETS MUST BE EMAILED TO FORECLOSUREOC@CIRCUIT19.ORG AT LEAST 10 BUSINESS DAYS PRIOR TO HEARING OR YOUR HEARING MAY BE CANCELLED.

Summary Judgment and Default packets submitted to the court must contain the following as a minimum for the case to proceed to a hearing:

- Motion for Summary Judgment or Motion for Default Final Judgment and Notice of Hearing/Re-Notice of Hearing
- First page of complaint showing the style of the case and Clerk's date of filing stamp and Last page of complaint showing verification (if filed after 2/10)
- All returns of service indicating service of summons on defendants (returns showing no service should not be submitted)
- Notice of dismissal/dropping party for any defendant not served
- Any documents filed in the court file regarding status of any bankruptcy proceeding for any defendant
- Promissory note sued upon (showing any endorsements)
- Allonge or recorded assignments
- Affidavit stating plaintiff was the owner and holder of the note at the time of filing and that the servicer has full authority to foreclose (with POA or pooling/servicing agreement)
- Affidavit of indebtedness
- Affidavit regarding attorney's fees by plaintiff's counsel
- Affidavit regarding attorney's fees by supporting expert
- Affidavit of costs
- Notice of Filing regarding original note, mortgage, assignments or allonges
- Proposed Final Judgment (in Word)
- Adding tape showing verification of the amounts listed in the proposed Final Judgment

Envelopes are no longer needed as the moving party (in this case your office) will serve the parties that have physical addresses. The proposed order must have the following language under the service list.

- A COPY OF THIS ORDER IS BEING SERVED ON THE FOLLOWING PARTIES VIA THE E-FILING PORTAL: (Include all parties with email addresses below this paragraph)

- (Insert the moving party, e.g. PLAINTIFF'S, DEFENDANT'S, etc) COUNSEL SHALL SERVE A COPY OF THIS ORDER ON THE FOLLOWING PARTIES IMMEDIATELY AND FILE A CERTIFICATE OF SERVICE IN THIS COURT FILE: (Include all parties with physical addresses below this paragraph)

- **Uncontested Foreclosure Non-Jury Trial**: Uncontested foreclosure non-jury trials may be scheduled in advance of the trial date listed in your Case Management Plan and Order. These may be scheduled using the Court's online scheduling system on either a UMC or special set hearing date as time permits. If the case is scheduled for a virtual hearing, all exhibits shall be filed with the Clerk of Court at least three (3) business days prior to the hearing. The proposed final judgment and notice of hearing should be submitted to the

Court by email at ForeclosureOC@Circuit19.org and OCJudge1@Circuit19.org within five (5) days of scheduling the hearing.

O. Information Not Covered

- If any procedures are not covered herein, counsel is free to contact the Court, in writing via e-mail at OCJudge1@Circuit19.org. A status hearing can be set at which time the Court will attempt to answer any inquiries. The Court appreciates counsels' efforts to understand and comply with this Court's procedures.